

been established, that a trustee who joins in a receipt for conformity, but without receiving, shall not be answerable for a misapplication by the trustee who receives (*b*). Where the administration of the trust is vested in co-trustees, a receipt for money paid to the account of the trust must be authenticated by the signature of all the trustees in their joint capacity, and it would be tyranny to punish a trustee for an act which the very nature of his office will not permit him to decline.

3. **But he must prove that he did not actually receive.** — But it lies upon a trustee who joins in a receipt to show that the money acknowledged to have been received by all was *in fact received by the other or others, and that [*265] he himself joined only for conformity (*a*). In the absence of all evidence, the effect of a joint receipt is to charge each of the trustees *in solido*; as if a mortgage be devised to three trustees, and the mortgagor with his witness meets them to pay it off, and the money is laid on the table, and the mortgagor having obtained a reconveyance and receipt for his money, withdraws, each of the trustees in this case will be answerable for the whole (*b*). A joint receipt at law is conclusive evidence that the money came to the hands of both, but a Court of equity, which rejects estoppels and pursues truth, will decree according to the justice and verity of the fact (*c*). “Where,” said Lord Cowper, “it cannot

(*b*) *In re Fryer*, 3 K. & J. 317; *Brice v. Stokes*, 11 Ves. 324, *per* Lord Eldon; *Harden v. Parsons*, 1 Eden, 147, *per* Lord Northington; *Westley v. Clarke*, 1 Eden, 359, *per eundem*; *Heaton v. Marriot*, cited *Aplyn v. Brewer*, Pr. Ch. 173; *Ex parte Belchier*, Amb. 219, *per* Lord Hardwicke; *Leigh v. Barry*, 3 Atk. 584, *per eundem*; *Fellows v. Mitchell*, 1 P. W. 81; *Gregory v. Gregory*, 2 Y. & C. 316, *per* Baron Alderson; *Sadler v. Hobbs*, 2 B. C. C. 117, *per* Lord Thurlow; *Chambers v. Minchin*, 7 Ves. 198, *per* Lord Eldon; *Lord Shipbrook v. Lord Hinchinbrook*, 16 Ves. 479, *per eundem*; *Harrison v. Graham*, 3 Hill's MSS. 239, *per* Lord Hardwicke, cited 1 P.

W. 241, 6th ed. note (*y*); *Carsey v. Barsham*, cited *Joy v. Campbell*, 1 Sch. & Lef. 344, *per eundem*; Anon. case, Mosely, 35; *Ex parte Wackerbath*, 2 Gl. & J. 151. [But see *Re Flower and the Metropolitan Board of Works*, 27 Ch. D. 592, where Kay, J., seems to have entertained the opposite opinion; and see *post*, p. 292.]

(*a*) *Brice v. Stokes*, 11 Ves. 234, *per* Lord Eldon; and see *Scurfield v. Howes*, 3 B. C. C. 96, Belt's Edition, note (8).

(*b*) *Westley v. Clarke*, 1 Eden, 359, *per* Lord Henley.

(*c*) *Harden v. Parsons*, 1 Eden, 147, *per eundem*; *Wilson v. Keating*, 4 De G. & J. 593, *per Cur.*